

3. After hearing the learned counsel for the parties and having gone through the record it reveals that there is no denial to this fact that the petitioner is nominated in

the FIR, however this Court has to see from the facts and circumstances whether the case against him to the extent of grant of relief prayed for is made out or not. It is an admitted fact that the petitioner is a dealer of fertilizer and not a manufacturer. It is also not the case of the prosecution that bags from which sample were procured by the raiding party were lying open in the shop of the petitioner rather these were sealed bags and the petitioner used to sell the same as it received. According to Section 6(1) of the said Act punishment for the contravention of any notified order is up to three years or with fine which shall not be less than the value of essential articles in respect of which the order has been contravened or both.

4. Since alternate sentence of fine has also been provided, therefore, petitioner is entitled to concession of bail on this ground alone. Moreover, as alleged in the FIR the petitioner is a fertilizer dealer and he was found having substandard fertilizer but at the same time it is admitted fact that he is not the manufacturer of the said fertilizer. When this situation was confronted to Ch. Muhammad Afzal Tahir/complainant and the Investigating Officer, present in Court whether the manufacturer or owner of the factory who produced the above said fertilizer has been associated or inquired about the substandard fertilizer the answer is in negative, which means that Investigating Agency has never bothered to investigate the real culprits. The investigation is already complete in the instant case and the prosecution has already collected the evidence, so sending the petitioner behind the bars would not serve any beneficial purpose to the prosecution.

5. For what has been discussed above, the instant petition is hereby allowed and ad interim pre-arrest bail already granted to petitioner by this Court vide order

dated 05.03.2019 is hereby confirmed subject to his furnishing fresh bail bonds in the sum of Rs.2,00,000/- (rupees two lacs) with one surety in the like amount to the satisfaction of the learned trial court.

(Muhammad Waheed Khan)
Judge.

Approved for Reporting:

Judge.

Ansar*